

		employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. “[T]he mere characterization of the conduct challenged as willful, reckless, wrongful and unlawful is not of itself sufficient to charge the malice in fact required to sustain a cause of action for punitive damages.” (Gambos v. Ashe (1958) 158 Cal.App.2d 517, 529. However, doing so “is not objectionable when sufficient facts are alleged to support the allegation.” (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6–7.) Therefore, “[i]n order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Ibid.) Here, the Complaint adequately alleges facts at paragraphs 13-20, 30-32, 41-42, 52-53, 64-65, 76-77, 88-89 that could, if proven, support a claim for punitive damages against Defendant based on willful and conscious disregard for Plaintiff’s rights. The motion is DENIED. Defendant is ordered to file an answer within 10-days.
3	24-01393857 <i>Bank Of America, N.A. vs. Chadha</i>	Motion to Vacate Plaintiff Bank of America, N.A.’s Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation of the Parties is CONTINUED to 7/2/26 for Plaintiff to submit an updated amount of judgment to be entered. <u>Legal Standard:</u> Code of Civil Procedure section 664.6 states, “(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” <i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1175–1176 (cleaned up), explains:

“Prior to the enactment of section 664.6, a party seeking to enforce a settlement agreement had to file a new action alleging breach of contract and seeking either contract damages or specific performance of the settlement terms, or alternatively had to supplement the pleadings in a pending case. [Citations.] Although a summary judgment motion could be filed based on the newly pleaded contract or specific performance claim, summary judgment could be granted only if the opposing party failed to raise a triable issue of fact. Expedient enforcement of a settlement agreement was therefore not always possible. Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit. [Citation] The power of the trial court under Code of Civil Procedure section 664.6, however, is extremely limited. Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. For this reason, the appellate court in *Weddington*, invalidated a judgment entered under Code of Civil Procedure section 664.6 that imposed a license agreement on one party because the terms of the license were not reflected in the writing signed by the parties. A settlement agreement is simply a contract. The retention of the trial court's jurisdiction to enforce the settlement agreement is no different than allowing a person with a contract with the school district to sue it for breach. The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.”

Application:

Here, the settlement agreement stipulates the Court shall retain jurisdiction under Code of Civil Procedure section 664.6 and shall enter judgment on the settlement if Defendant defaults. (Ex. 1, ¶ 7.)

Plaintiff's counsel declares that in May 2024, the parties entered a settlement agreement in which Defendant would make monthly payments to Plaintiff through November 2026 and judgment would not be entered so long as Defendant was making payments.

The monthly payments were to consist of \$500/month from May 2024 – April 2025, \$1,750/month from May 2025 – October 2026, and a final payment of \$285.31 in November 2026 for a total of \$37,785.31. If Defendant made 24 of 31 payments, then Defendant may deduct the remaining payments of \$10,785.31 from the remaining balance. (Plaintiff's Ex. 1.)

If Defendant failed to make timely payments, the parties stipulated the Court was authorized to enter judgment in the amount of \$37,785.31 minus payments received. (Ex. 1.) Plaintiff's counsel declares that as of October 2025, Defendant defaulted because the last payment made was in July 2025. Plaintiff seeks entry of judgment in the remaining amount of \$31,336.37 (including Plaintiff's court costs of \$1,088.17).

		Defendant filed an opposition on 4/6/26 which asserts that they have attempted to comply with the settlement agreement, but the collection agency incorrectly charged \$1,000 in March 2025, which was returned by Defendant's bank. Defendant also asserts the collection agency incorrectly stated that starting in April 2025 the monthly payment would change to \$1,750.00. Defendant states this was double the agreed-upon monthly payment of \$500 at the time. Defendant submits records which appear to show Defendant resumed making \$500 payments between November 2025 and February 2026. However, Plaintiff's Exhibit 2 reflects \$500 payments from May 2024 through May 2025, then a \$1,000 debit on 5/23/25 which was returned the same day, after which payments resumed in the amount of \$500/month through 7/23/25. Therefore, the admissible evidence shows that although there was an error in May 2025, it was promptly corrected and monthly payments resumed in the amount of \$500, after which Defendant ceased making payments in August 2025. Defendant has not explained how the May 2025 error caused them to stop making payments in August 2025 or excused such failure. Therefore, Plaintiff has sufficiently established Defendant's breach of the settlement agreement and the Court intends to enter judgment on the parties' settlement pursuant to Code of Civil Procedure section 664.6. However, the amount of judgment to be entered is unclear to the Court, since it appears Defendant resumed payments after allegedly ceasing payments in August 2026, and Plaintiff has not submitted a reply brief. Plaintiff's counsel shall file and serve a reply declaration, not to exceed five pages, no later than 6/26/26, stating what the total amount to be entered for judgment is as of the present date, and explaining the basis for their calculation. If the reply declaration is not timely filed, the motion will be denied without prejudice.
4	24-01420130 Carr vs. Siefkin	1) Motion to Be Relieved as Counsel of Record 2) Motion to Compel Answers to Form Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Production 5) Motion to Compel Response to Requests for Admissions The motions of plaintiff Natalie T. Carr for orders compelling responses to the second sets of form and special interrogatories and the first set of requests for production propounded to defendant Gregory Siefkin, deeming the matters in the first set of requests for admitted, and imposing a total monetary sanction of \$6086.25 against defendant and his attorney of record is GRANTED as specified below. Defendant is to serve verified responses to the second sets of form and special interrogatories and the first set of requests for production without objection and within 20 days of written notice of ruling.